

provide a proposed Order as required by Local Rule of Court 5.17(D). Petitioner is to prepare the Order.

LVNV FUNDING, LLC VS. BELL

Case Number: 24CVG-01476

Tentative Ruling on Motion to Deem Requests for Admissions Admitted: Plaintiff LVNV Funding, LLC seeks an order deeming the truth of matters specified in Plaintiff's Request for Admissions, Set One, which was served on Defendant Gladys Bell by mail on November 27, 2024. The Motion is unopposed.

When a party fails to respond to a request for admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Here, Plaintiff's moving papers sufficiently demonstrate that the discovery was served by mail and Defendant has failed to respond within the required time frame. The request to deem the matters admitted is granted.

Monetary sanctions are mandatory per CCP 2033.280(c); however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2023.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions. The motion is **GRANTED**. A proposed order has been lodged and will be executed.

IN RE: PENDLETON

Case Number: 25CV-0207393

Tentative Ruling on Petition for Change of Name: Petitioner Marie-Rose Lane Pendleton seeks to change her name to Harper Sigrid Grey Kunde. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates and close the file.

SEGALL VS. NORTH AMERICAN MENTAL HEALTH SERVICES, INC, ET AL.

Case Number: 23CV-0203390

Tentative Ruling on Order to Show Cause Re Dismissal: An Order to Show Cause Re: Dismissal ("OSC") issued on April 24, 2025, pursuant to Gov't Code § 68608(b) to Plaintiff for failure to appear and failure to timely prosecute. No response to the OSC has been filed. At the most recent review hearing on April 21, 2025, Plaintiff requested a continuance to retain counsel. Nothing further has been filed. It appears that Plaintiff has abandoned this action. Absent an appearance and good cause shown, the Court intends to dismiss the matter for failure to timely prosecute. An appearance is necessary on today's calendar.